

justification or other circumstances would make a sanction unjust. (Code of Civ. Proc. Section 2033.290(c).)

The declaration of plaintiff's counsel shows that the requests were served by mail (and electronically), and that the time for response ran without any response from defendant. Plaintiff's counsel sent a meet and confer letter, although it is not required.

The motion is granted. Sanctions are not requested.

9. 9:00 AM CASE NUMBER: L25-11532
CASE NAME: MODERN FLIRTING LLC VS. IGOR NOSOVITSKIY
***HEARING ON MOTION IN RE: NTC \$ MTN FOR ORDER VACATING AND SETTING ASIDE DEFAULT (AND DEFAULT JUDGMENT) DEC, MPA**
FILED BY: NOSOVITSKIY, IGOR
TENTATIVE RULING:

Defendant seeks to set aside the default entered against him in this breach of contract case. Defendant also seeks to set aside the default judgment, but while a judgment has been applied for, it has not yet been entered.

In defendant's declaration, he sets forth a number of different claims in defense of the suit, all of which go to the merits of the dispute. At no point does he assert that he was not served with the summons and complaint or was served improperly. The proof of service asserts that he was served by substitute service on February 15, 2026. The request to enter default was filed on April 24, 2026. Nor does defendant contend that he failed to file a responsive pleading due to mistake, inadvertence, or excusable neglect.

As a threshold matter, however, the file contains no proof of service of the motion on plaintiff's counsel. Accordingly, the motion is continued to January 12, 2027, at 9:00 a.m., to allow Defendant to serve the motion and notice of the continuance in a timely manner.

10. 9:00 AM CASE NUMBER: L25-14969
CASE NAME: ONEMAIN FINANCIAL, LLC AS SERVICER FOR ('ASF') WILMINGTON TRUST, N.A., AS ISSUER LOAN TRUSTEE FOR ONEMAIN FINANCIAL ISSUANCE TRUST 2019-2 VS. ATASHA SCOTT SIMS
***HEARING ON MOTION FOR DISCOVERY MTN TO COMPEL FURTHER RESPONSES FILED BY DEF ON 06/05/2026**
FILED BY: SCOTT SIMS, ATASHA Y
TENTATIVE RULING:

Defendant moves to compel further responses to its First Request for Production of